

JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.44573/2024

Amir Khan etc. Vs. Addl. Collector of Customs etc.

Date of hearing	29-01-2025
Petitioners by	Mr. Hassan Raza Shakir, Advocate.
Respondents by	M/s Nadeem Mahmood Mian and Huriya Fatima, Advocates. Ms. Deeba Tasnim Anwar, Assistant Attorney-General for Pakistan along with Syed Babar Ali, Inspector (Customs).

ABID AZIZ SHEIKH, J. This Constitutional Petition is directed against the impugned Corrigendum dated 10.06.2024 (hereinafter referred to as "**impugned Corrigendum**") issued by respondent No.1, which purportedly modified the order-in-original No.78 of 2023 dated 15.12.2023 (issued on 20.12.2023) (hereinafter referred to as "**order-in-original**").

2. Relevant precised facts are that the order-in-original was passed by the Additional Collector Customs (Adjudication), Collectorate of Customs (AIIA)/respondent No.1 (hereinafter referred to as "**respondent**") under Section 179 of the Customs Act, 1969 ("**Act**"), explicitly directing for release of the seized mobile-phone sets, belongings of the petitioners, against the payment of redemption fine, leviable duties and taxes, subject to issuance of either Certificate of Conformity ("**COC**") or, in the alternative, No Objection Certificate ("**NOC**") duly issued by the Pakistan Telecommunication Authority ("**PTA**"). Further, the personal penalty of Rs.10,000/- each was also imposed upon the petitioners, however, subsequently the order-in-original was modified by the respondent *vide* impugned Corrigendum, substituting the individual personal penalties of Rs.10,000/- with the total personal penalty of Rs.7,922,048/- i.e. an amount equivalent to the assessed value of the recovered mobile phone

sets. Being aggrieved by this modification, the petitioners have filed this Constitutional Petition.

3. Learned counsel for the petitioners submits that the order-in-original was passed by the respondent under the statutory authority vested in her by Section 179 of the Act. Contends that pursuant to the established legal framework, being the only remedy available to any party aggrieved by the order passed under Section 179 *ibid*, an Appeal under Section 193 of the Act could only be filed, therefore, the respondent acted *ultra vires* of her jurisdictional authority by unilaterally amending the order-in-original through the impugned Corrigendum.

4. Conversely, learned counsel for the respondents supported the impugned Corrigendum, asserting its legal efficacy and conformity with the established principles of the procedural propriety.

5. Arguments heard. Perusal of the record demonstrates that the order-in-original was passed on 15.12.2023 with direction to release the seized mobile-phone sets on payment of leviable duties, taxes and redemption fine subject to issuance of either a COC or NOC from the PTA. The petitioners duly deposited the leviable duties, taxes and redemption fine on 05th January, 2024, however, notwithstanding this remittance, the subject mobile phones were not released, which necessitated the petitioners to file Writ Petition No.17287/2024 before this Court, eventually, the said Petition was allowed, *vide* Judgment dated 28.03.2024, with consequential direction to the respondents to comply with the order-in-original. The respondents contumaciously did not comply with this Court's directive, resultantly, Criminal Original No.25506-W/2024 was filed, however, during its pendency the impugned Corrigendum was promulgated on 10.06.2024, which substantively altered the order-in-original, enhancing individual personal penalties imposed upon the petitioners from Rs.10,000/- to a total amount of Rs.7,922,048/-.

6. The foregoing facts incontrovertibly demonstrate that the order-in-original was passed by the respondent acting as an Adjudicating Authority under Section 179 of the Act and the sole and exclusive remedy available to any party aggrieved by said order was an Appeal under Section 193 of the Act before the Collector Customs (Appeal). Critically, the respondent had no *Suo-moto* power to modify the order-in-original, enhancing the personal penalties from Rs.10,000/- each to an aggregate amount of Rs.7,922,048/-, particularly in absence of any application from the aggrieved party requesting such modification. Once the matter was adjudicated upon by the respondent, she became *functus officio* with respect to the order-in-original, and unless and until the matter was remanded to her by the Appellate Authority or any other higher forum, she could not unilaterally modify the order-in-original.

7. It is settled law that 'judicial' or 'quasi-judicial authorities' cannot change its determination in an adjudication after signing 'judgment', 'order' and 'decree' as then the doctrine of '*functus officio*' comes in the way. The expression '*functus officio*' means that having fulfilled the functions, discharged the duties, discharged the office, or the purpose got accomplished, there remains no further force or authority with the 'judicial' or 'quasi-judicial Authorities. The hon'ble Supreme Court of Pakistan explained this maxim in "Kh. Muhammad Fazil Vs. Mumtaz Munnawar Khan Niazi (deceased) through L.Rs. and another" (2024 SCMR 1059) in following terms:

"The Latin maxim "functus officio" denotes that once the competent authority has finalized and accomplished the task for which he was appointed or engaged, his jurisdiction and authority is over and ended or, alternatively, that the jurisdiction of the competent authority is culminated once he has finalized and accomplished his task for which he was engaged. If the Court passes a valid order after providing an opportunity of hearing, it cannot reopen

the case and its authority comes to an end and such orders cannot be altered save for where corrections need to be made due to some clerical or arithmetical error. This doctrine is applicable to both judicial and quasi-judicial authorities, and, if it is not adhered to, it may result in turmoil for the litigating parties. If the authorities or the judges would be able to alter, change or modify orders capriciously and variably then resultantly will leave no certainty and firmness to any order or decision passed by any Court or authority. It is imperative for a sound judicial system to result in finality and certitude to the legal proceedings."

The same view was also expressed by this Court in "Anees-ur-Rehman Vs. Messrs Faysal Bank Limited through Manager" (2020 CLD 473); relevant part is reproduced hereunder:

"24. It is also worth mentioning that 'adjudication authority', 'judicial' or 'quasi-judicial' cannot change its 'determination' in an adjudication, after signing of the 'judgment', 'order' and 'decree' as then doctrine of 'functus officio' comes in the way. The doctrine of 'functus officio' has been defined in the Law Lexicon Venkataramaiya. The expression 'functus officio' means, having fulfilled the functions, discharged the duty(ies), discharged the office, or the purpose got accomplished and further it remains no force or authority."

Reliance is also placed on "Iqbal Pervaiz and others Vs. Harsan and other" (2018 SCMR 359), "Muhammad Wahid and another Vs. Nasrullah and another" (2016 SCMR 179), "Shujat Ali Vs. Muhammad Riasat and others" (PLD 2006 Supreme Court 140), "Muhammad Anwar Vs. Saeed Akhtar and others" (PLD 2004 Supreme Court 911) and "Bank Al Habib Limited through Branch Manager Vs. Abu Bakar Textile Mills through Managing Partner and 8 others" (2016 CLD 454).

8. Moreover, a plain reading of Section 179 of the Act reveals no provision for conferring upon the respondent even the power to rectify order-in-original, rather such power vests exclusively in

the Customs Appellate Tribunal under Section 194-B (2) of the Act and same is also exercisable only upon a mistake apparent on record being duly brought before the Tribunal by a party to an appeal. Consequently, the impugned Corrigendum is manifestly *ultra vires* the relevant provision of the Act.

9. For the reasons recorded above, this Writ Petition is **allowed** and the impugned Corrigendum is set-aside, being without lawful authority and of no legal effect whatsoever from its purported inception.

(ABID AZIZ SHEIKH)
JUDGE

Approved for Reporting

JUDGE

*Arsalan**